15/03/2021

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GAS243958 2021

SECOND AMENDMENT AND AGREEMENT

THIS SECOND AMENDMENT AND AGREEMENT (this "**Agreement**") is entered into as of 17 December, 2020 (the "**Effective Date**"), by and among:

1. Guinness Ghana Breweries PLC (the **"Customer"**) a limited liability company incorporated in Ghana, bearing Registration Number CS0064 72016, formerly known as Guinness Ghana Breweries Ltd, having its registered address at Achimota, Accra, Greater Accra, Ghana; and
2. CrossBoundary Energy Ghana Limited ("**CBE Ghana**" or the "**System Owner**"), incorporated under the laws of Ghana, with registration number CS137952018 and registered address at Plot Number 21, 8th Floor, Airport City, One Airport Square, Accra, Greater Accra, Ghana

Hereinafter referred individually as each a "**Party**" and together, the "**Parties**."

GHANA GHS 1.00 CUSTOMS DUTY

RECITALS

A. NVI Energy (Mauritius) Ltd (Ghana) ("**SolarAfrica**"), CrossBoundary Energy Holdings Ltd ("CBEH") and C[illegible] entered into a Solar Services Agreement ("**SSA**") dated on or about 1 April 2018 in connection with the design, construction and operation of a photovoltaic electricity generation system ("**Facility**") for the benefit of the Customer;

B. Customer, SolarAfrica, CBEH and CBE Ghana amended the SSA by mutual agreement on 19 December 2019;

C. The Parties seek to acknowledge and agree that project procurement and shipping timelines have been impacted by the ongoing COVID 19 pandemic which has resulted in a delay to the start of construction.

NOW, THEREFORE, in consideration of the premises set forth above and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties hereby agree as follows:

1. **Definitions.** Unless otherwise defined in this Agreement, capitalized terms used in this Agreement have the respective meanings ascribed to them in the SSA.

2. **Agreement.** Notwithstanding anything to the contrary in the SSA, and effective as of the Effective Date, the Parties hereby acknowledge and agree as follows:

   2.1. Anticipated Commercial Operation Date. The Anticipated Commercial Operation Date is hereby amended to be 28 February 2021.

3. **No Other Modification to SSA.** Other than the amendment, assignments, consents and acknowledgments described in this Agreement, nothing in this Agreement is intended to modify, alter or rescind any of the terms or provisions of the SSA.

4. **Miscellaneous.** This Agreement shall be governed by the laws of the jurisdiction set forth in the SSA, without regard to principles of conflicts of law. The dispute resolution provisions set forth in the SSA shall apply to this Agreement. This Agreement shall inure to the benefit of and be binding upon each of the Parties and each of their respective successors and assigns. This Agreement may only be amended by a writing signed by all of the Parties. This Agreement may be executed in counterparts, each of which is deemed an original, but all of which constitute one and the same agreement. Delivery of an executed counterpart of this Agreement electronically or by facsimile shall be effective as delivery of an original executed counterpart of this Agreement. This Agreement constitutes the entire agreement of the Parties relating to the subject matter hereof and supersedes all prior contracts, agreements or understandings with respect to the subject matter hereof, whether oral or written.

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IN WITNESS WHEREOF, the Parties have each executed this Agreement as of the Effective Date.

GUINNESS GHANA BREWERIES PLC

By: Mkushi, Teye

Name: Mkushi, Teye

Title: Finance Director

Date: 14 January 2021

CROSSBOUNDARY ENERGY GHANA LIMITED

By:

Name: Matthew Tilleard

Title: Director

Date: 17 December 2020

0023836 — 09/03/2021

IN ACCORDANCE WITH SECTION 10 OF THE STAMP ACT 2005 I CERTIFY THAT IN MY OPINION THIS INSTRUMENT IS CHARGEABLE WITH A STAMP DUTY OF

GH¢ 2.00 (Two Ghana Cedis)

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ACCRA 2021-02-18

Commissioner of Income Tax

COMMISSIONER OF INCOME TAX
REPUBLIC OF GHANA

LAND VALUATION DIVISION
RECEIVED
DATE 29/01/2021
P.O. BOX CT 794, ACCRA

NATURE OF FEES	PAID	RECEIPT No.	DATE
PROCESSING FEE	GH¢ 45.00	LVD.10110 6182021	25/01/2021